

Recording Requested by:

WFG National-Default Services

When Recorded Mail to:

ZBS Law, LLP

3550 N. Central Ave., Ste. 1190

Phoenix, Arizona 85012

SPACE ABOVE THIS LINE FOR RECORDERS USE

TS#: 26-78127

Order #: 2776234AZD

NOTICE OF TRUSTEE'S SALE

The following legally described trust property will be sold, pursuant to the power of sale under that certain Deed of Trust dated 7/12/2022 and recorded on 7/13/2022, as Instrument No. 20220570038, and the subject Deed of Trust was modified by Loan Modification Agreement recorded as Instrument 20250549005 and recorded on 9/24/2025, in the office of the County Recorder of Maricopa County, Arizona. **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AND WILL OCCUR** at public auction to the highest bidder **at the Main Entrance to the Superior Court Building, Maricopa County Courthouse, 201 W. Jefferson Street, Phoenix, AZ 85003, on 8/20/2026 at 10:00 AM** of said day:

LOT 1277, OF TARTESSO UNIT 2B, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 776 OF MAPS, PAGE 10 AND AFFIDAVIT OF SCRIVENER'S ERROR RECORDED AS DOCUMENT NO. 2008-169596 OF OFFICIAL RECORDS;

EXCEPTING THEREFROM ALL COAL, OIL, GAS, AND OTHER MINERAL DEPOSITS, AS RESERVED IN THE PATENT TO SAID LAND;

EXCEPT THEREFROM THE MINERALS AND SUBSTANCES, AND THE ASSOCIATED RIGHTS THERETO, DESCRIBED AND CONVEYED IN THAT CERTAIN INSTRUMENT RECORDED AT DOCUMENT NO. 2017-0579126 OF OFFICIAL RECORDS, WHEREIN SAID MINERALS AND SUBSTANCES WERE CONVEYED TO DRH ENERGY, INC., A COLORADO CORPORATION.

Per A.R.S. Section 33-803 (A)(2) the successor trustee appointed here qualifies as a Trustee of the trust deed in the Trustee's capacity as a member of the State Bar of Arizona.

ACCORDING TO THE DEED OF TRUST OR UPON INFORMATION SUPPLIED BY THE BENEFICIARY, THE FOLLOWING INFORMATION IS PROVIDED PURSUANT TO A.R.S. SECTION 33-808(C):

NOTICE OF TRUSTEE'S SALE

Street address or identifiable location: 3076 N 309TH DR
BUCKEYE, AZ 85396

A.P.N.: 504-77-377 5

Original Principal Balance: **\$470,000.00**

Name and address of original trustor:
(as shown on the Deed of Trust)
BENJAMIN LOGAN HESS, MARRIED MAN
3076 N 309TH DR
BUCKEYE, AZ 85396

Name and address of beneficiary:
(as of recording of Notice of Sale)
Planet Home Lending LLC
321 Research Parkway, Suite 303
Meriden, Connecticut 06450-8301

IMPORTANT NOTICE: Starting March 1, 2026, Federal Law may prohibit ZBS Law from issuing a Trustee's Deed Upon Sale in connection with this trustee's sale until information about the winning bidder is reported to the U.S. Treasury's Financial Crimes Enforcement Network. See, 31 CFR § 1031.320 (<https://www.ecfr.gov/current/title-31/subtitle-B/chapter-X/part-1031/subpart-C/section-1031.320>). If this trustee's sale qualifies as a "reportable transfer" under 31 CFR § 1031.320(b), and you, as buyer, qualify as a "transferee entity" under 31 CFR § 1031.320(e)(1) (Unofficial Document) "sferee trust" under 31 CFR § 1031.320(e)(2), you will be obligated to provide information about the Beneficial Owner(s) of the transferee to ZBS Law or ZBS Law's designated representative. If you qualify as an exempt entity or trust under 31 CFR § 1031.320(n)(10)-(11), you may be required to provide evidence of the exemption supported by a declaration under penalty of perjury. If the Trustee's Deed Upon Sale cannot be issued due to a qualified transferee's failure or inability to provide the necessary reporting information, the qualified transferee will be responsible for all fees and costs to re-notice the trustee's sale.

NAME, ADDRESS & TELEPHONE NUMBER OF TRUSTEE:
(as of recording of Notice of Sale)

Erin K. Sweeney, a member of the State Bar of Arizona
ZBS Law, LLP
3550 N. Central Ave., Ste. 1190
Phoenix, Arizona 85012
Phone Number: (602) 282-6188

SALE INFORMATION:
Sales Line: (855) 976-3916
Website: www.auction.com